Board Policy 4.50.030-P

Complaint Policy

I. Definitions and Introduction

Complainant: The person filing a complaint against PPS.

Division 22: The educational standards, found in Oregon Administrative Rules Chapter 581, Division 22, that the State of Oregon has determined must be met in order to be a standard school district.

Final Decision: The written decision from PPS that settles a matter at the district level. Some Final Decisions have additional appeal rights to other agencies.

Affirmed: The decision made after a review of the evidence that there is reason to believe that a violation of state or federal law or District policy has occurred.

Not Affirmed: The decision made after a review of the evidence that a violation of state or federal law or District policy has not occurred.

We know that when families are engaged with their children's schools, children are more likely to have academic success, graduate from high school, develop self-confidence, and demonstrate strong social behaviors. When we put children at the center of our decisions and actions, we can deliver better experiences for all students and families. We also know that our school district can be complex and that families and students will have questions and sometimes concerns about our curriculum, classrooms, programs, and other experiences.

Portland Public Schools welcomes expressions of concern as opportunities to learn, clarify our intentions, and engage in continuous improvement to benefit all students. We welcome those conversations and expect that all adults, including PPS educators and other staff, will model our core values--including respect, relationships, honesty and integrity, collaboration, and a strong commitment to racial equity and social justice--when we have those conversations.

When a student or family has a concern, we encourage a direct conversation with the educator or department directly involved in the issue. There are many other PPS staff who may be able to help, too, including administrators who oversee specific schools or departments. PPS also has a District and Family Liaison/Complaint Coordinator, who can help families access information, connect with PPS staff, and help resolve concerns.

We also have several complaint processes for PPS students, families, and all who reside within the PPS community. All parties to a PPS complaint will be treated and treat others with respect and dignity, and PPS will provide support to those making complaints so that the process is welcoming, accessible, transparent, and reflects our strong commitment to racial equity and social justice.

PPS will resolve complaints as quickly as possible and in compliance with state law.

II. Complaints: Accessibility; Training; and Annual Reports

A. A full explanation of the complaint procedure, including all forms, shall be available at PPS's administrative office and on PPS's Conflict Resolution website found here.

B. **District Complaints**

PPS has a common complaint form (PPS Unified Complaint Form) for concerns that will be addressed by specific departments within PPS, such as concerns or complaints regarding enrollment and transfer, transportation, educational records, restraint and seclusion, discrimination, bias incidents, Title IX, teen dating violence, and 504 accommodations. Complainants will receive a final written decision from the Superintendent's designee within 60 days of receipt of the complaint.

Complaints or reports about child abuse should be directed immediately to the Child Abuse Hotline at 1-855-503-SAFE, as well as the PPS supervisor.

C. **Division 22 Complaints**

i. Complaints under the Oregon Department of Education's Division 22 regulations [Chapter 581, Division 22 (Standards for Public Elementary and Secondary Schools] include those about instructional standards and district-wide practices (class size, curriculum, etc.), special education and Talented and Gifted programs (but not individual concerns), health and safety, equitable education opportunities, sports safety, annual reports on restraint and seclusion, and mandatory District policies and plans.

If a Complainant is not satisfied after exhausting PPS's complaint procedures, PPS fails to provide a written decision within 30 days of submission of the complaint at any step, or PPS fails to resolve the complaint within 60 days of the initial filing of the complaint, Complainants may appeal PPS's final decision to the Oregon Department of Education.

ii. Because complaints can be an important indicator of the health of an organization, the Superintendent will provide to the Board at least annually data on (1) Division 22 trends, emerging issues, and District responses, as well as an assessment of the Division 22 complaint process; and (2) a summary of complaints that are not governed by a process that is required by statute or regulation (*e.g.*, Title IX) that have been filed using PPS's complaint process concerning matters that affect more than an individual student or school.

iii. PPS will provide training for designated PPS staff on how to handle complaints under Division 22.

III. Timelines for All Complaints

A. In order to investigate a complaint while memories are recent and witnesses and documents are likely more available, a complaint must be filed within the following time limits:

i. Within two years after the alleged violation or unlawful incident occurred or the Complainant discovered the alleged violation or unlawful incident. For

incidents that are continuing in nature, the time limit runs from the date of the most recent incident; or

ii. Within one year after the affected student has graduated from, moved away from, or otherwise left PPS, whichever is later

B. The time limits for bringing complaints may be extended by PPS for complaints about significant student safety issues, including those arising out of employee misconduct, sexual abuse or conduct, or other allegations of harm to students.

C. PPS accepts confidential anonymous complaints concerning Division 22 matters through the PPS Unified Complaint Form. Those making complaints anonymously should provide as much information as possible when making the complaint. PPS will investigate any complaint, including anonymous complaints, as fully as it can.

IV. Filing a Division 22 Complaint – Step 1

A. The written complaint must be filed with PPS's Complaint Coordinator by letter, email, or the PPS Unified Complaint Form. The written complaint should include the name and contact information for the Complainant, a description of the concern, and the student's name, if applicable. It is helpful if the written complaint also includes the names of any other parties involved, including witnesses; a description of efforts to resolve the concern; and suggestions for resolution. The Complainant will receive a written acknowledgement of receipt of the complaint within five days of submitting the complaint.

B. All Division 22 complaints processed under this policy will receive a decision in writing that addresses each concern raised and contains reasons for PPS's decision within 30 days of receipt of the complaint, unless the parties agree to extend the deadline, and the decision will include information about next steps in the complaint process.

V. Filing an Appeal of a Division 22 Complaint Decision – Step 2 Appeal to the School Board

A. If a complaint about a Division 22 matter is not fully substantiated, the Complainant may request a review of the unsubstantiated allegations by the School Board. The request for review will be submitted in writing within 10 days of the Complainant receiving the decision in Step 1.

B. The Board will vote on the appeal within 30 days of the written request to appeal PPS's Step 1 decision unless the parties agree to a longer time period. The Board will have the full written record of the decisions at Step 1. The Complainant will also have the full written record and any materials or information provided to Board members before the hearing about the complaint unless otherwise protected from disclosure by law.

C. PPS staff and the Complainant will exchange any other written background information they intend to present to the Board at the appeal hearing at least 24 hours before the hearing. If new information is offered less than 24 hours before the Board hearing, the Complainant may ask for an extension of time.

D. Complainants may bring an advocate or support person to any meeting or proceeding. For hearings before the Board, PPS will inform the Complainant which PPS staff will be attending the hearing.

E. Because the Board makes the final decision at the Step 2 appeal, Board members should not knowingly initiate or continue contact with Complainants about the topic of

a complaint or independently investigate allegations in the complaint once they have notice that a Division 22 complaint has been filed. PPS staff will regularly notify Board members about new Division 22 complaints that are filed.

F. To make the process as fair and transparent as possible, PPS will provide a written overview of the structure and format of the hearing to the complainant, the ability to submit additional material 24 hours before the hearing, as well as whether the session is open or closed to the public and/or media. The Complainant may provide testimony when the complaint is heard.

G. The Board will issue a final decision after the hearing that PPS's Step 1 decision is:

   i. Affirmed and no further action will be taken; or

   ii. Not affirmed in whole or in part and may direct the Superintendent to take alternative steps or other courses of action.

H. With agreement from the Complainant, the Board may hold the complaint in abeyance until a certain date or event.

I. PPS will make all reasonable attempts to schedule a special meeting to consider the appeal of the Division 22 complaint at a time that is convenient for the Complainant. If, after multiple attempts and at least 90 days have passed since the appeal was made, it has not been possible to coordinate a time for the meeting with the Complainant, the Board may meet to consider the appeal on the written materials submitted and will give notice to the Complainant.

J. The Board's final decision will be communicated to the Complainant in writing. If the complainant is not satisfied with the decision of the Board, the Complainant may file an appeal with the Oregon Department of Education (ODE) as permitted by OAR 581-022-2370(4)(b).

VI. Other Provisions

A. PPS will provide translation and interpretation services and other reasonable accommodations to assist Complainants. Legal advice is not a resource provided by PPS.

B. The PPS representative assigning staff to investigate and respond to a complaint will avoid any conflicts of interest or the appearance of conflicts of interest.

C. Retaliation against any person who files or participates in a PPS complaint process is strictly prohibited. Retaliation is any intentional action that would deter a reasonable person from participating in the process. Anyone who believes they have suffered retaliation should immediately report it to the Superintendent or School Board.

D. PPS will share with Complainants as much information as possible about the findings of the investigation and will, in all cases, share the outcome of its investigation of complaints. However, PPS is often prohibited from disclosing specific information about disciplinary action taken against an employee or student involved in the complaint or other legally protected information.

E. The Board will hear appeals of complaints that involve confidential student records in a session closed to the public and media unless the student or family requests the appeal be heard in a session open to the public.

F. As used in this policy, “days” will be counted as “calendar days.” Any period for response under this policy that falls on a weekend or legal holiday will be extended to the next business day.

G. PPS may not be able to assure confidentiality of the names of persons who file complaints under this policy.

H. If a complaint alleges employee misconduct that is outside the scope of this policy, the complaint coordinator will notify the Superintendent in writing of that filing, and PPS will endeavor to respond in a timely manner.

I. Current and former employees may not bring a complaint under this policy regarding the terms, conditions, or status of their employment.

J. Complaints that have been previously filed by a Complainant, investigated, and responded to and for which appeals have been exhausted or the time for appeal has expired, cannot be refiled when the complaint is regarding a particular incident or issue that has already been addressed.

VII. Complaints Against the Superintendent or Members of the Board of Education

Any complaint about alleged individual misconduct by the Superintendent (but not PPS action for which the Superintendent may have ultimate responsibility as the chief executive officer of PPS) will be overseen by the Board of Education.

Board members are volunteers serving in an elected capacity and are accountable to the citizens in the Portland Public Schools district for their actions and policy positions. Complaints alleging ethics violations or violations of the law against an individual Board member should be made to the Board Chair, who will refer these issues to appropriate governmental jurisdictions or a third party if a majority of the Board approves of either referral. Complaints related to ethics violations or violations of the law against the Board Chair should be made to the Board Vice-Chair(s) who will refer these issues to appropriate governmental jurisdictions or a third party if a majority of the Board approves of either referral. If a third party investigates a complaint, after receiving the results of the investigation, the Board will decide, within 30 days, in open session, what action, if any, is warranted.

VIII. Complaints Submitted to Members of the Board of Education

School Board members who receive Division 22 complaints from constituents or staff will forward complaints to PPS’s Complaint Coordinator. Board members will forward all other complaints to the appropriate school or department in order to address the concern.

IX. Further Appeal Rights

If any complaint alleges a violation of Oregon Administrative Rules (OAR) Chapter 581, Division 22 (Standards), Oregon Revised Statutes (ORS) 339.285 to 339.303 or OAR 581-021-0550 to 581-021-0570 (Restraint and Seclusion), or ORS 659.852 (Retaliation), and the complaint is not resolved through a PPS complaint process, the Complainant, who is a student, a parent or guardian of a student attending a school in PPS, or a person who resides in PPS district, may appeal a final decision by PPS to the Oregon Department of Education.

If the complaint alleges discrimination pursuant to ORS 659.850 or OAR 581-021-0045 to 581-021-0047 (Discrimination in Education), a Complainant may appeal a final decision by PPS to the Oregon Department of Education or may file a complaint directly with the U.S. Department of Education without having to exhaust PPS procedures under this policy.

In addition to using the PPS complaint procedure, Special Education complaints may be made directly to the Oregon Department of Education. The Complainant must send a copy of the complaint to PPS and the Department of Education at the same time.

Legal Reference(s): ORS 192.610 to 192.690 ORS 332.107; ORS 339.285 to 339.383; ORS 659.852; OAR 581-022-2370

History: Adopted 11/2014; Amended 6/12/18, 6/15/2021, 7/12/2022, 6/13/2023